

When a defendant moves to quash the summons on the basis of invalid service, “[T]he burden is on the plaintiff to prove ... the fact requisite to an effective service.” *Summers v. McClanahan* (2006) 140 CA4th 403, 413.

However, service that is done by a registered process server raises a presumption of valid service, shifting the burden to the Defendant. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795.

In the instant matter, even assuming for the sake of argument that personal service did not occur, the Defendant appears to concede that he, in fact, received copies of the Summons and Complaint, when he wrote, in his Motion, “The papers were later found left unattended on the front porch,” and he attached apparent photos of the process server leaving the documents at his residence.

This suggests to the court that, by a preponderance of the evidence, Defendant has been served with process.

The timing of this service, however, is a bit unclear.

The court will grant leave to file his Answer within 10 days of this Order.

Disposition

Defendant’s Motion is **denied**.

However, Defendant to file Answer within 10 days of this Order.

Plaintiff shall prepare and submit the Order.

15. 9:00 AM CASE NUMBER: L25-14576
CASE NAME: U.S. BANK NATIONAL ASSOCIATION VS. YANA MAYFIELD
HEARING ON DEMURRER TO:
FILED BY:
TENTATIVE RULING:

Background

Defendant filed a Demurrer to the Complaint, which alleges Breach of Contract as the sole cause of action, and also moved to strike the request, in the Complaint, for attorney fees.

The Complaint alleges damages of \$17,394.37, resulting from Defendant’s failure to repay Plaintiff for money that Plaintiff lent to Defendant, and also seeks the recovery of court costs.

The Complaint contains the copy of the purported written agreement.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.

A defendant may raise the issue of standing in a Demurrer when the complaint does not state facts sufficient to constitute a cause of action by the particular plaintiff. *CCP 430.10(b) and (e)*; *CCP 430.30(a)*; and *Mercury Interactive Corp. v. Klein* (2007) 158 CA4th 60, 103-104.

In a limited civil matter, "Motions to strike are allowed only on the ground that the damages or relief sought are not supported by the allegations of the complaint." *CCP 92(d)*.

Cause of Action for Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821. The formation of a contract requires that the contract terms were clear enough that the parties could understand what each was required to do. *Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 811.

In the instant matter, the Complaint sufficiently alleges the existence of a written agreement between the parties, with definite terms. The writing and terms are reflected in the attachment to the Complaint, which indicate, in summary, that the agreement was executed when Defendant used the credit account, and that the terms involved the lending of money by the Plaintiff, the obligation of the Defendant to repay the money which Plaintiff lent and the collection of court costs. Further, the Complaint shows that Plaintiff performed their end of the bargain, yet Defendant failed to do so when Defendant did not pay. Moreover, Plaintiff suffered damages of approximately \$17,300.

Disposition

Defendant's Demurrer is **overruled**.

To the extent Defendant has moved to strike Plaintiff's request for court costs, that request is denied.

Plaintiff shall prepare and submit the Order.